ECCO Equipment Company, LLC
9175 E Pima Center Parkway, Ste A4
Scottsdale, AZ 85258

CREDIT APPLICATION

California ● Arizona
Nevada ● Idaho ● Utah

For Branch Use Only:

Branch: _____

Sales Rep: _____

TO **ECCO EQUIPMENT COMPANY, LLC**: For the purposes of procuring credit with ECCO, the undersigned applicant furnishes the following information. Applicant represents and warrants that said information is true, correct, and complete.

APPLICANT: BUSINESS OR CORPORATE NAME			APPLICATION DATE		
BUSINESS PHYSICAL ADDRESS			BUSINESS MAILING ADDRESS (IF DIFFERENT)		
CITY	STATE	ZIP	CITY	STATE	ZIP
PRIMARY CONTACT	TELEPHONE		EMAIL		
AP CONTACT	TELEPHONE		EMAIL		
STATE WHERE REGISTERED OR INCORPORATED	CONTRACTOR'S LICENSE NO			STATE	
YEARS IN BUSINESS	NATURE OF BUSINESS				
ESTIMATED MONTHLY CREDIT REQUIREMENT	WEBSITE				
TYPE OF BUSINESS ☐ CORPORATION ☐ PARTNERSHIP ☐ SOLE PROPRIETOR ☐ LLC ☐ GOVERNMENT ☐ OTHER				SSN # AND/OR TAXPAYER ID #:	

DO YOU REQUIRE A PURCHASE ORDER REQUISITION NUMBER? ☐ YES ☐ NO	TAX EXEMPT? If yes, attach exemption certificate. ☐ YES ☐ NO	CERTIFICATE OF INSURANCE ATTACHED? Required to process application. ☐ YES ☐ NO
INSURANCE COMPANY	CONTACT PERSON	INSURANCE CO PHONE NUMBER

OWNERS/OFFICERS

NAME	TITLE	SOCIAL SECURITY #	HOME TELEPHONE #	
HOME ADDRESS		CITY	STATE	ZIP
NAME	TITLE	SOCIAL SECURITY #	HOME TELEPHONE #	
HOME ADDRESS		CITY	STATE	ZIP

BANK AND SAVINGS ACCOUNT

NAME	ACCOUNT #	TELEPHONE #	
BRANCH ADDRESS	CITY	STATE	ZIP
NAME	ACCOUNT #	TELEPHONE #	
BRANCH ADDRESS	CITY	STATE	ZIP

TRADE REFERENCES

NAME	ADDRESS	TELEPHONE #
NAME	ADDRESS	TELEPHONE #
NAME	ADDRESS	TELEPHONE #

Have you previously had an open account with ECCO? ☐ YES ☐ NO

Has applicant or any owners, principals, partners, officers or directors ever filed a voluntary petition in bankruptcy, been adjudged bankrupt, or made an assignment for the benefits of creditors? (If yes, please attach explanation) ☐ YES ☐ NO

APPLICATION FOR CREDIT AND RENTAL AGREEMENT

TERMS & AGREEMENT

1. This is an application to open an account to rent equipment on the general terms and conditions attached. Each project for which equipment is supplied shall be assigned an ECCO job number and you will be invoiced by that number.
2. Each invoice is due and payable in full NET 30, except as otherwise shown on the face of the invoice. Please remit all payments to the address on the invoice.
3. Any account with a delinquent balance may be placed on a cash basis at any time, and the equipment picked up without notice, at the discretion of ECCO Equipment Company, LLC.
4. ECCO files preliminary lien notices as provided under applicable State Lien Laws where equipment is used. THIS IS COMPANY POLICY AND IS NOT A REFLECTION ON YOUR CREDIT STANDING.
5. All past due accounts are subject to interest at up to 18% per annum. In the event your account is turned over to an attorney or other agency for collection, or suit is brought on the same, or the same is collected through any judicial proceeding whatsoever, applicant shall pay all reasonable attorney fees and court costs incurred by ECCO.
6. This agreement, and any invoices issued pursuant to its terms, shall be subject to and construed under Arizona Law. The sole venue for any legal action brought to enforce this agreement or any invoice issued pursuant to its terms is a state or federal court located within the geographical boundaries of Maricopa County, Arizona.
7. The attached Terms and Conditions for rental agreements are a part of this application and require the signature of the Owner or authorized Officer of applicant. Please sign where indicated and return the forms with this application.

THE UNDERSIGNED, warrants that all information on this Credit Application is true and correct, has read and hereby accepts and shall be bound by ALL of the open account credit terms and conditions as set forth in each rental contract. ECCO is hereby authorized to receive credit reports and/or information from any/or all references listed herein.

Print Customer Name:_____ **Print Authorized Officer's Name:**_____

Authorized Officer's Signature:_____ **Print Authorized Officer's Title:**_____

Date:_____

Authorized Signatory: President, the Executive Vice President and Chief Financial Officer, the Treasurer, the Controller and the Assistant Controller of the Company. Any other title will require a letter on company letterhead stating they are authorized and signed by one of the aforementioned positions.

PERSONAL GUARANTEE

The undersigned hereby unconditionally guarantee(s) the full and prompt payment to ECCO when due, all obligations and liabilities of customer named herein, including all amounts now owing and arising in the future.

This guarantee shall continue in force until notice in writing, sent by registered or certified mail, return receipt requested, is received by ECCO. This notice shall specify the date of termination, not less than seven (7) days after the notice is received by ECCO and shall not affect any charges for transactions with the customer that were entered into prior to the termination date.

Guarantor's Signature:_____ **Witness/Spouse Signature:**_____

Print Guarantor's Name:_____ **Print Witness/Spouse Name:**_____

Print Guarantor's Title:_____ **Date**:_____

Date:_____

If Guarantor resides in a **Community Property State**, such as AZ, CA, ID, LA, NV, NM, TX, WA and WI, Guarantor hereby warrants that he/she is unmarried

(Signature) _____ or the Guarantor's Spouse must also sign above.

TERMS AND CONDITIONS OF RENTAL AGREEMENT

INDEMNIFICATION: CUSTOMER agrees that the equipment and all persons operating such equipment are under Customer's exclusive care, custody, supervision and control and agrees to indemnify and save ECCO, its employees and agents free and harmless from any and all claims for death or injury to persons and from any and all loss for damage to property including the rental equipment arising in any manner out of Customer's lease, possession, or operation of the equipment. Customer's duty to indemnify hereunder shall include all costs and expenses, and any and all claims resulting from the use of the equipment, including all court and/or arbitration costs, filing fees, attorney's fees and costs of settlement, regardless of whether a lawsuit is filed. Upon demand and tender of a claim, Customer shall appoint counsel on ECCO's behalf to defend against any claim covered by Customer's indemnification obligations. ECCO's failure to demand a defense of any such claim will not affect or impact ECCO's rights to indemnity, as otherwise set forth in this paragraph. For the purposes of this entire agreement, the equipment is in Customer's exclusive care, custody, supervision, and control even if Customer subleases the equipment to Customer's customer. In the event Customer subleases the equipment to Customer's customer, such sublease shall not affect Customer's indemnity obligations, as set forth in this paragraph, in any manner.

I**NSURANCE:** Customer is responsible for the full value of loss or damage to the equipment, regardless of fault, including lost rental income. Customer agrees, because the equipment is in its care, custody and control, to maintain, at its own expense, General Liability Insurance, Inland Marine/Contractors' Equipment Insurance, and Workers' Compensation Insurance (if required by law), prior to delivery of the equipment and throughout the period that the equipment remains in the care, custody, and control of Customer or Customer's customer, notwithstanding that the Rental Period may have ended. If renting an over-the-road-registered vehicle, hired and non-owned auto physical damage is required equal to the value of the vehicle rented and auto liability of $1,000,000 minimum in limits is required. General Liability/Business Auto (Hired and Non-Owned) Liability must (1) name ECCO Equipment Company, LLC (ECCO) as an additional insured; (2) include a waiver of subrogation and be primary and non-contributory in favor of ECCO; and (3) have a limit of at least $1,000,000 per occurrence and annual aggregate. Inland Marine/Contractors' Equipment Insurance must (1) be on a primary and non-contributory basis; (2) insure 100% value of the equipment (minimum $500,000 per item); (3) have a deductible acceptable to ECCO; (4) name ECCO as an additional insured on General Liability/Business Auto (Hired and Non-Owned) Liability; and (5) name ECCO as an additional insured and loss payee on Inland Marine/Contractor's Equipment. Workers Compensation Insurance must include a waiver of subrogation endorsement in favor of ECCO. Customer shall provide Certificates of Insurance as evidence that the required insurance is in force and shall provide that the issuing companies give ECCO thirty (30) days' written notice prior to any cancellation. Any deductibles and/or self-insured retentions applicable to any of the required insurance shall be the Customer's responsibility. If Customer for any reason does not obtain any such insurance, the failure to do so shall constitute an agreement by Customer to indemnify ECCO against any and all loss that such insurance would otherwise have covered. If Customer subleases the equipment to others after taking delivery, the Customer shall require all such subCustomers to maintain insurance in like form, amounts, and conditions as that required in this paragraph, or in the alternative endorse the required insurance policies to provide equivalent coverage to ECCO regardless of whether Customer or a subCustomer is in control of the equipment at the time of loss of or damage to the equipment.

WARRANTY: There are no express warranties or implied warranties to fitness for a particular purpose. The equipment covered by this agreement is in good operating condition suitable to do the work for which it is designed. ECCO's liability is limited to repair of any defects in the equipment which ECCO determines occurred under normal use, including reasonable wear and tear from normal use. Customer is responsible for normal maintenance of the equipment while the equipment is in Customer's care, custody, supervision, or control. If the equipment is returned in damaged or excessively worn condition, Customer shall pay to ECCO the reasonable cost of repair. The following shall not be deemed reasonable wear and tear from normal use: (1) damage resulting from lack of lubrication or maintenance of necessary oil, water, proper fuel, and air pressure levels; (2) damage resulting from lack of normal servicing or preventive maintenance, as noted in the manufacturer's operation and maintenance manual; (3) operating the equipment while low on any lubricant or coolant, excessive fuel pressure or dirty filters; damage resulting from collision, overturning or improper operation of the equipment, including overloading or exceeding the rated capacity of the equipment; (4) damage in the nature of dents, bending, tearing, straining and misalignment to the equipment or any part thereof; or (5) damage resulting from jobsite vandalism. ECCO's mechanics' time for damage repair, travel time and for modification requested by Customer shall be billed at current hourly rates, which change from time to time. Parts and outside repairs shall be invoiced at cost plus a handling charge. Customer represents and warrants that Customer is the sole responsible user of the equipment and Customer accepts responsibility for supervising and directing excavation performed near any pipeline, electrical lines or other subsurface installation, whether known or unknown to the Customer. Customer shall maintain a record of all notifications by excavators and operators to the region notification center for a period of not less than three years.

EQUIPMENT SERVICE: Customer is responsible for normal equipment servicing including but not limited to checking fuel levels, all fluid levels, tire pressures, track adjustment and greasing equipment.

WEAR ITEMS: Customer is responsible for ground engaging tools (bucket teeth, cutting edges, etc.). Equipment is furnished with ground engaging tools in a serviceable condition and must be returned in like condition or additional charges will be due. Customer shall be invoiced for replacement or repair costs for tire cuts, tears, separation, puncture and bruises and for excessive tire wear or undercarriage wear. Allowable tire wear is 2/32" per tire, per month. Allowable undercarriage wear is 5% per month.

RENTAL RATES: When a monthly rate is quoted and the rental period is for less than one month, rental is charged at the weekly rate if the period is for one week or more. If the rental period is for less than one week, rental is charged at the daily rate. A work day is defined as eight (8) hours in a twenty-four (24) hour period; a week is defined as forty (40) hours in a seven (7) day period and a month is defined as one-hundred-sixty (160) hours in a twenty-eight (28) day period. Equipment worked in excess of the hours stated will be invoiced at the appropriate rate for the number of excess hours worked. Rental shall begin on the date shipped and shall run consecutively through the date ECCO is advised that the equipment is released by Customer to ECCO.

TERMS OF PAYMENT: Full payment for all charges is due Net 30. Thirty (30) days after billing, all past due accounts are subject to interest at up to 18% per annum. Customer must notify ECCO **in writing to ar@eccoequipment.com** of any dispute regarding any invoice within thirty (30) days after the invoice is issued. If Customer fails to provide notice of a dispute within this period, Customer will waive and forever release its right to dispute the invoice, and the amount charged will be deemed correct and undisputed. If rental is not paid when due, or if Customer fails to comply with any of the terms and conditions herein, ECCO may at its option, terminate this agreement and at Customer's expense, enter upon the premises where equipment is stored, take possession of the equipment without previous notice or demand and return it to ECCO's premises. Customer agrees to pay to ECCO all reasonable costs and fees, including attorneys' fees, incurred in collecting past due amounts, in addition to all other amounts due.

MOVING EQUIPMENT: Moving equipment on and off jobsites is charged at the amount quoted. Customer may move the equipment at their own expense.
NO EQUIPMENT SHALL BE MOVED WITHOUT PRIOR NOTICE TO ECCO.

The undersigned accepts and agrees that the terms and conditions for rental of equipment from ECCO Equipment Company, LLC shall apply to any and all rentals and are made a part of each and every rental contract.

Print Customer Name:_____ **Print Authorized Officer's Name:**_____

Authorized Officer's Signature: _____ **Print Authorized Officer's Title:**_____

Date:_____

Authorized Signatory: President, the Executive Vice President and Chief Financial Officer, the Treasurer, the Controller and the Assistant Controller of the Company. Any other title will require a letter on company letterhead stating they are authorized and signed by one of the aforementioned positions.